SIMULATED FILING FOR A CLASS PROJECT (Docket Clock demo) | Index No. 158204/2026 | Doc No. 1 | NOT FILED IN ANY COURT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ROSA DELGADO, individually and on behalf of all others similarly situated,

Plaintiff,

- against -

RIVERSIDE TOWER MANAGEMENT LLC,

Defendant.

Index No. 158204/2026

SUMMONS AND VERIFIED CLASS ACTION COMPLAINT

TO THE ABOVE-NAMED DEFENDANT: You are hereby summoned to answer the complaint in this action and to serve a copy of your answer on Plaintiff's attorneys within twenty (20) days after service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. If you fail to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates New York County as the place of trial. The basis of venue is the location of the property at issue, 2150 Riverside Drive, New York, New York.

NATURE OF THE ACTION

1. Plaintiff Rosa Delgado brings this action under CPLR Article 9 on behalf of herself and a class of approximately 340 current and former tenants of 2150 Riverside Drive who were charged rents above the lawful regulated amount and who were repeatedly left without adequate heat and hot water during the 2024-2025 and 2025-2026 heating seasons.

2. Defendant Riverside Tower Management LLC is the managing agent of the building and collected the rents at issue.

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CLASS ALLEGATIONS (CPLR 901)

3. The class is so numerous that joinder of all members is impracticable. Common questions of law and fact predominate, including whether Defendant's rent registrations were unlawful and whether Defendant failed to maintain heat as required. Plaintiff's claims are typical of the class, and Plaintiff will fairly and adequately protect the interests of the class. A class action is superior to other available methods for adjudicating this controversy.

CAUSES OF ACTION

4. First Cause of Action: rent overcharge. Second Cause of Action: breach of the warranty of habitability (Real Property Law section 235-b). Third Cause of Action: declaratory relief.

WHEREFORE, Plaintiff demands judgment certifying the class, awarding damages in an amount to be determined at trial, and granting costs, attorneys' fees and such other relief as the Court deems just.

Dated: New York, New York, August 17, 2026

HARTWELL & OSEI LLP (fictional), Attorneys for Plaintiff and the Proposed Class

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